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File No.: EXP202202292

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On February 11, 2022, a complaint was filed with the Spanish Agency for Data Protection against ECOIMPERIA S.L. (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that, after receiving a phone call in which they identified themselves as her supplying company, a contract was changed to the complained entity without her consent, having the complained party all her personal data beforehand. She attaches to her complaint a contract dated November 3, 2021.

Relevant documentation provided by the complainant:

- Contract (unsigned) dated November 3, 2021.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party; the forwarding was reiterated on March 7, 2022, by certified postal mail, and was again returned due to absence.

THIRD: On May 11, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, having knowledge of the following aspects:

Upon reviewing the contract submitted by the complainant, it is evident that the incoming marketer is the entity FACTOR ENERGÍA, S.A., with ENCIENDE ENERGÍA being the authorized sales agent. The latter also acts as a maintenance service provider, as specified in Annex III. Commercial and Energy Advisory Service:

“Additionally to the supply and maintenance service contracts contracted by THE Client with Factor Energía, The Client contracts with BONTECU, S.L. with CIF B069741451 hereinafter ‘ENCIENDE ENERGÍA’ some of the services described in the previous table.”

1.- On July 11, 2022, a request for information was made to FACTOR requesting, among other points, a description of the procedure for changing the marketer to FACTOR for a natural person initially holding a contract with another marketer and evidence of the contracting with the complainant. FACTOR responded to this request for information on July 29, 2022, providing the following information and statements:

- In the preliminary statements of its writing, this entity warns that the complainant directs her complaint against ECO IMPERIA energía (ENCIENDE ENERGÍA) and not against FACTOR.
- That, according to its records, the complainant signed an electricity supply contract with FACTOR.
- That the aforementioned contracting was carried out through an external agent company called BONTECU that operates under the brand or trade name ENCIENDE ENERGÍA. BONTECU is a commercial entity that acts as a sales channel for FACTOR through telephone sales (telemarketing).
- That, in the call related to said contracting, the agent introduced himself as ENCIENDE ENERGÍA, an authorized agent of FACTOR, and all personal data of the complainant was collected by the agent to complete the supply contract. Consent was also obtained verbally via telephone, after which the

confirmation of the contracting was made electronically through an SMS sent to the holder of the supply point to confirm the contracting, which includes a link to view the draft of the contract in question. The confirmation of the contracting occurs by replying to the SMS with a YES, certified by a trusted third party.

- That this agent company owns its own database and, therefore, is responsible for the processing, and the complainant was informed of this during the contracting call, indicating that her data comes from the file ***FICHERO.1 and communicating the electronic address where she can exercise her rights.

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- FACTOR incorporates the personal data provided by the claiming party to the agent from the moment the aforementioned sales channel sends the supply contract to activate the change of marketer, not having the same beforehand.

- After the corresponding validation by FACTOR's staff, the distributor company is requested to change the marketer, and the contractual relationship begins after the confirmation of the change of marketer by the distributor company.

- The aforementioned validation consisted of verifying that the channel had made available to FACTOR:

- Full copy of the supply contract signed with the client,
- Audio of the contracting call with all necessary pre-contractual information,
- Certificate issued by the trusted third party.
- At the request of the Agency and in response to the information request, FACTOR provides a copy of the Register of Processing Activities of Potential Clients, that is, those interested parties who have already signed a contract with FACTOR, but the supply has not yet begun as the change of marketer is not yet active.

The provided text contains the required information:

- Information about the data controller and the data protection officer;
- Categories of personal data and data subjects;
- Purpose and legal basis;
- Categories of recipients to whom personal data is communicated;
- Retention period.
- FACTOR also provides a copy of the content included in the Risk Analysis or Assessment in compliance with Article 32 of the GDPR, indicating that there is a low risk.
- The entity continues to describe the procedure for changing the marketer to FACTOR for a natural person initially holding a contract with another marketer.

“[...] In order for the change of marketer to take place, the effective consent of the holder of the supply point must be obtained through the signature or confirmation of the contracting by means admitted by law.

Marketing may be carried out by in-house personnel or by commercial agents with whom FACTOR maintains a commercial agency contract. After the appropriate validation, a request is made to the distributor company for the change of marketer [...]”.

In the case of contracts through sales channels in telemarketing mode, as is the case claimed, marketing and contracting are carried out by the external collaborating company. Until the external commercial agent of FACTOR sends the confirmed contract for validation and activation with FACTOR, the entity FACTOR does not have such data. From the moment the supply contract sent by the agent to FACTOR is received, such data is incorporated for the first time into its internal register of potential clients.

The entity continues to describe the validation process and detailing the technical and organizational measures of FACTOR to ensure that the established procedure is followed.

“In the validation process, it is verified that all the documentation provided, as well as the personal data

and the supply point, match what was mentioned by the client during the call. Additionally, the confirmation of the contracting carried out by the external agent occurs through the response to that SMS with a YES, all certified by a trusted third party that collects the evidence of the entire process and the content of the contract made, which is also verified by FACTOR's internal department. Specifically, it is verified that the external commercial agent has sent the signed contract, the contracting call, and the certificate issued by the trusted third party (certified SMS)"

- FACTOR provides the following evidence:

- 1.- Copy of the electricity supply contract signed between FACTOR and the claimant (this document matches the contract provided by the claimant). Valid from December 7, 2021, to January 25, 2022.
- 2.- Copy of the electronic communication certificate - SMS contract, with LLEIDANETWORKS (hereinafter Lleida.net) as the trusted third party. It certifies the response with a "YES" to the message sent for the formalization of the contract object of the claim, a message that includes a link to said contract. The certificate indicates that the response was sent on November 3, 2021, at 18:01 from the phone number ***PHONE.1, a number belonging to the claimant and which appears in the receipt of the claim submission. The annex does not include the electronic signature of the trusted third party (but FACTOR will provide it later in its response to the second information request).
- 3.- Screenshots of the date of registration and validity of the contract: activation on 07/12/2021 and cancellation on 25/01/2022.
- 4.- Information from two issued invoices, both marked as unpaid.

It is confirmed that the contract that can be downloaded from the link of Lleida.net provided by FACTOR is the same document that was submitted in the claim.

As of November 22, 2022, it is verified that Lleida.net is a telecommunications operator in several countries, including Spain, where it holds a license from the CNMC to operate as such. It is a qualified trusted electronic service provider as established in the eIDAS Regulation for the entire European Union and provides the qualified service of certified electronic delivery, as published on the website of the Ministry of Economic Affairs and

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Digital Transformation.

It is confirmed that, as certified by Lleida.net, the claimant has expressed their consent to formalize the contract that is the subject of the claim.

2.- On November 23, 2022, information is sought from the Monitoriza service at <https://www.axesor.es/> regarding the three companies involved in this claim.

It is noted that ECOIMPERIA belongs to the economic group VISALIA ENERGIA SL and has A.A.A. as its president since June 8, 2021, while BONTECU has the same person as shareholder, sole partner, and sole administrator since July 19, 2021.

It is noteworthy that the CIF of ECOIMPERIA obtained from AXESOR is the same CIF that appears in the legal notice link of ENCIENDE ENERGIA.

3.- On November 23, 2022, a second request for additional information is made to FACTOR, requesting, among other points, a copy of the contract between FACTOR and BONTECU, a copy of the recording of the phone call where the claimant expresses consent for the execution of the contract, and documentation evidencing the consent granted by the claimant to be contacted for commercial purposes on behalf of FACTOR.

FACTOR responds to this request for information on December 23, 2022, providing the following information:

- Copy of the contract between the entities FACTOR and BONTECU: DOC#Contract, telemarketing agency contract.
- Audio file ***AUDIO.1 with the recording of the contracting call made on November 3, 2021, to the claimant, regarding the contracting of electricity supply with FACTOR by the agent company BONTECU.
- Copy of the certificate from the trusted third party that certifies the confirmation of the contract, similar to that provided in response to the first request.

This certificate from the trusted third party is dated November 3, 2021, which coincides with the date of

the call, that is, it is just after the call made on that date, which certifies the claimant's consent for the processing of their data at the time of formalizing the change of supplier, but does not certify their consent to be contacted for commercial purposes.

Regarding the telemarketing agency contract ***CONTRATO.1 provided by FACTOR, BONTECU acts as the Agent and FACTOR as the company, whose main activity consists of the marketing of electricity and natural gas.

In EXPONEN II, it is stated that "the agent is a company completely unrelated to the company [...] that is dedicated to the activity of promoting the marketing of various products [...]"

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In EXPONEN III, it is indicated that "the agent will collaborate with the company to carry out its commercial strategy, provide commercial coverage, and carry out certain campaigns."

In the FIRST clause, Object and scope, it is established that the agent is obliged to the company to carry out the following works and services necessary for the execution of telemarketing campaigns:

- *. Commercial prospecting
- *. Presentation of offers through call emissions
- *. Information capture
- *. Voice recording of the contracting process
- *. Closing of sales
- *. Telephone validation and validation of consent by electronic means (SMS)
- *. Registration of the contract on the company's platform

In the TWENTY-SECOND clause, Protection of personal data, it is announced:

"To comply with the agency activity subject to this Contract, the AGENT declares that they are the owner of a file with contact data of potential clients in the market that has been obtained lawfully, being authorized to process the data in the terms of the client acquisition services entrusted to them by THE COMPANY. For this purpose, THE AGENT must specify in Annex 7 regarding data protection the source from which they obtained such data.

THE AGENT will act as the Data Processor for the collection and registration of the personal data of the interested party wishing to subscribe to an energy supply contract, with the COMPANY being the Data Controller, who states and guarantees that all processing of personal data will be carried out in compliance with the provisions of the GDPR and the LOPDGDD.

Regarding the personal data obtained as a result of the execution of this Contract, THE AGENT undertakes to use or apply the personal data obtained in the execution of the Contract in accordance with the instructions given by THE COMPANY and solely for the purpose of fulfilling the Object of this Contract, ensuring that the data subject to processing is handled only by those employees whose intervention is necessary for the contractual purpose."

(Note: the underlining has been added by the Agency)

The following communication is continued in Annex 7, Protection of personal data:

"[...] the AGENT declares that they are the owner of a file with contact data of potential clients. [...]"

For this purpose, THE AGENT declares through these clauses that the contact data of potential clients who will be the recipients of their client acquisition activity has been obtained through a legitimate transfer or from accessible sources.

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publicly available without restrictions and is carried out according to the admissible requirements of the

GDPR. THE AGENT will make the calls acting as the Data Controller in their capacity as the holder of the database and under their account and responsibility.

That the legitimacy for the processing of the personal data file of contact arises from (mark the option as applicable):

A legitimate transfer: (specify) _____

Publicly accessible sources: (specify) _____

The consent of the Data Subject (Attach model where the consent of the data subject was obtained to offer the service/product subject to this contract)

Execution of a contract (Attach model of the contract that legitimizes the processing for the issuance of commercial calls)

Other circumstances: (specify) _____

[...]

From the moment the potential client accepts the commercial purpose of the call, in the event that they grant their consent to the contracting of the product of THE COMPANY by signing the corresponding contract, THE AGENT will act as the Processor for the collection and registration of the personal data of the data subject, with THE COMPANY being the Data Controller.

(Note: the underlining has been incorporated by the Agency)

From here, the contract for the processing assignment is specified, establishing the object, identification of affected information, duration, and obligations of both the processor and the controller. Regarding the audio file ***AUDIO.1 provided by FACTOR, it is noted that the speech of the Agent making the call matches what is specified in Annex 8 of the contract ***CONTRACT.1 provided by FACTOR.

The Agent begins by identifying themselves with their name and continues by informing that "I am calling from ENCIENDE ENERGÍA, an authorized agent of FACTOR ENERGÍA to offer you an offer [...]"

Your data comes from the file ***FILE.1S.L with the ownership of ENCIENDE ENERGÍA. At any time, you can exercise your rights by contacting the email address [...]"

The Agent continues to describe the Offer and requests the data. The complainant provides the following data at that moment:

Full name, ID number, Date of birth, mobile phone, email address, supply point address.

They authorize payment by bank account and provide the bank account number from bank XXXX.

4.- On November 23, 2022, a request for information is made to BONTECU requesting, among other points, documentation proving the consent granted by the complainant to be contacted for commercial purposes on behalf of FACTOR, the source of all personal data of the complainant, and the method of obtaining such data.

BONTECU responds to this information request on December 9, 2022, providing the following documentation at the Agency's request:

- *. ***DOCUMENT.1- Activity Record of Processing (RAT) of the Organization.
- *. B#DOC#2- Risk Analysis (AR).
- *. B#DOC#3 - Service provision contract between BONTECU and FACTOR.
- *. B#DOC#4 – Agency Contract (Telemarketing) between BONTECU and an EXTERNAL AGENT.
- *. B#DOC#5 – Dissolution in General Meeting of the company ECOIMPERIA S.L.
- *. B#DOC#6 - Supply contract that clients sign.
- *. B#DOC#7 – Email response from FACTOR ENERGÍA, indicating non-collaboration with the entity.
- *. B#DOC#8 - Screenshot from their systems with no data associated with the complainant.

BONTECU, in its response letter, sends the following information and statements to this Agency:

- BONTECU attaches document ***DOCUMENT.1 (RAT), which contains the Name and contact details of the Data Controller, the Representative of the Controller, and the Data Protection Officer (DPO), and for each processing:

- *. Purposes of the processing.
- *. Description of the categories of data subjects.
- *. Description of the categories of data.
- *. Categories of Recipients.

- *. Data transfers to third countries, identifying these.
- *. Expected retention periods for the different categories of data.
- *. General description of the technical and organizational security measures.

The file related to this complaint would be No. 4, CONTACTS, with the following information:

4. CONTACTS

Processing

- *. Description: Communication, information, and management regarding products and services. Includes web and social media contacts.
- *. Purposes: Advertising and commercial prospecting.
- *. Legitimacy: EXPLICIT consent for specific purposes (Article 6.1.a GDPR).
- *. Source of the data: The same data subject or their legal representative.
- *. Categories of data subjects: Clients and users, Contact persons, Applicants.
- *. Retention criteria: Retained for no longer than necessary to maintain the purpose of the processing or while there are legal prescriptions that dictate.

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Custody

- *. Treatment system: Partially Automated

Categories of data

- *. Identifying data: DNI or NIF, First and last name, Postal or electronic address, Phone
- *. Special or criminal data categories: None
- *. Other types of data: Commercial information

Categories of recipients

- *. Transfers: None
- *. International transfers: None

- BONTECU attaches document ***DOCUMENTO.2 (Risk Analysis). This document studies the processing operations carried out with the data in order to diagnose whether there are risks to the protection of the rights and freedoms of the data subjects and implements technical and organizational measures for each.

- BONTECU attaches document ***DOCUMENTO.3 (Service Provision Contract between BONTECU and FACTOR), whose purpose is to provide energy consulting services by BONTECU (the provider) to FACTOR. Signed in September 2021.

In clause NINTH, Personal Data Protection, it is specified that:

“[...] the provision of the service subject to this contract by the Provider will involve access to information about personal data owned by FACTOR [...]

The access to personal data owned by FACTOR by the Provider will not be considered a legal communication or transfer of data, but rather a simple access to the same as a necessary element for the execution of the contracted service [...]

In the contracted service, the provider will act as the data processor, with FACTOR being the data controller, which states and guarantees that all personal data subject to processing has been obtained legitimately and in accordance with the provisions of the Data Protection regulations (specifically, through the signing of the corresponding supply contract and, where applicable, additional services).”

In relation to this personal data, the provider undertakes (among others) to:

- *. Use them exclusively for the performance of the contractually agreed service.
- *. Not communicate them.
- *. Destroy the personal data once the contractual provision that motivated the Provider's access to FACTOR's files has been completed.

In clause ELEVENTH, Subcontracting, it is established that the provider may subcontract with third parties the execution of the work.

- BONTECU attaches document ***DOCUMENTO.4 (Agency Contract (Telemarketing) between

BONTECU and an EXTERNAL AGENT) signed on August 10, 2021, C/ Jorge Juan, 6, 28001 – Madrid, although the header states July 14, 2021.

This document is identical to the telemarketing agency contract ***CONTRATO.1 signed between FACTOR and BONTECU, except that document ***DOCUMENTO.5 does not contain clause TWENTY-FIRST, Use of the Agent's Brand, nor Annex 8, Argumentation, and Annex II, Economic Conditions for residential customers has been modified.

In this case, the contract is signed by B.B.B. DNI: ***NIF.21 with address at ***DIRECCIÓN.1 as Agent ("who is engaged in the activity of promoting the marketing of various products") and BONTECU as the company, whose main activity consists of the marketing of electricity and natural gas.

As specified in contract ***CONTRATO.1 between FACTOR and BONTECU, in clause TWENTY-SECOND, Protection of Personal Data, it is stated:

"To comply with the agency activity subject to this Contract, the AGENT declares that they own a file with contact data of potential clients [...]"

For this purpose, THE AGENT must specify in Annex 7 related to data protection the source from which they obtained such data."

In this Annex 7, it is also communicated that "From the moment the potential client accepts the commercial purpose of the call, in the event that they grant their consent to the contracting of the product of THE COMPANY by signing the corresponding contract, THE AGENT will act as the Data Processor for the collection and registration of the personal data of the interested party, with THE COMPANY being the Data Controller." and it continues with the specification of the data processing agreement.

- Regarding the information requested about the relationship between the entities BONTECU and ECOIMPERIA, it is reported that ECOIMPERIA is a dissolved company, without activity, and document B#DOC#5, Dissolution in General Meeting of the ECOIMPERIA company dated February 22, 2022 is attached.

BONTECU clarifies that the relationship between both entities is that A.A.A. was one of the managing partners of ECOIMPERIA and is currently one of BONTECU.

- BONTECU indicates that ENCIENDE ENERGIA is the trade name of BONTECU, a registered trademark of the company.

- In relation to the Agency's request for information about the procedure established by BONTECU for attracting new clients, the source of the personal data used as the basis for this commercial campaign, and the method of obtaining such data, BONTECU provides document ***DOCUMENTO.6, Supply Contract that clients sign, and adds that "In Annex I of said service contract, express consent regarding data protection is given. The client expressly authorizes FACTOR ENERGIA S.A to, acting as a substitute for the client, sign with the distribution company the contract for access to the distribution network and for the processing of their data.

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personal data and communications by electronic means, in accordance with Art. 4 GDPR."

BONTECU also provides

***DOCUMENT.7,

a copy of the email response from FACTOR regarding non-collaboration since it had already submitted the documentation requested by BONTECU directly to the Agency concerning the contracting by the claimant.

- Regarding the request for screenshots of all data held by BONTECU associated with the claimant and the source of such data, BONTECU submits

***DOCUMENT.8, a screenshot from its systems showing no data associated with the claimant, and explains that:

"Once the contract is uploaded to the FACTOR ENERGÍA platform (software) and after the formalization of the contract, following the client acquisition by BONTECU DISTRIBUCIONES S.L., the supply contract disappears from the accessible systems of BONTECU DISTRIBUCIONES S.L. after one month.

BONTECU promotes the supplies marketed by FACTOR ENERGÍA, in accordance with the instructions and action programs determined by FACTOR ENERGÍA, contained in the contracts of

DOC. 4 and 5.

The obtaining of the data as observed in the contract consists of the entity BONTECU DISTRIBUCIONES S.L. being an entity external to FACTOR ENERGÍA, specialized in the marketing of services."

(Note: the underlining has been added by the Agency)

- In relation to the request for documentation evidencing the consent granted by the claimant to be contacted for commercial purposes on behalf of FACTOR, BONTECU again relies on document ***DOCUMENT.6, in which consent is granted subsequently, once the contract has been accepted, but BONTECU does not provide the consent granted prior to the making of the call.

5.- On February 6, 2023, a second request for information is made to BONTECU requesting documentation evidencing the consent granted by the claimant prior to the making of the contracting call, the completed Annex 7 of the contract between the entity BONTECU and B.B.B. (i.e., an annex that includes information about the legitimacy for the processing of the personal contact data file provided by B.B.B.) and a copy of the contract signed with XXXX or any other document evidencing the purchase of the file from which the personal data of the claimant has been obtained. BONTECU responds to this request for information on February 13, 2023, providing a single document in which the following information and statements are provided:

- That the consent granted by the claimant is collected by B.B.B., as the Data Controller, which conducts telephone sales campaigns for the contracting of energy supplies to potential clients. BONTECU continues to explain that in Annex 7 of the provided Agency contract (B#DOC#4), the data processing that is carried out is detailed. The Agent "declares to be the owner of the file containing the data of potential clients and Data Controller."

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of the processing, this is expressly stated in said annex.

The Agent issues calls acting as the Data Controller in the capacity of holder of said database.

In compliance with data protection regulations, as an obligation of the GDPR, there is a duty to inform the client/user about the data collected: for what purpose, for how long, whether it will be transferred to third parties, or the means to exercise their rights.

The legality of the processing and respect for the law depend on him.

Therefore, it is the Data Controller who must prove at all times that he has obtained consent, documentation that is not accessible by BONTECU and that must be requested from said Data Controller in order to substantiate it.

- In response to the request from the Agency for the completed Annex 7 of the contract between the entity BONTECU and B.B.B., that is, an annex that includes information about the legitimacy for the processing of the personal contact data file provided by, BONTECU responds:

"Attached - Agency Contract with B.B.B. with the completed Annex 7 regarding the data processing carried out between both entities.

The Agent in the second paragraph declares: "that the contact data of potential clients who will be the recipients of his recruitment activity has been obtained from a legitimate transfer or from publicly available sources without restrictions and is carried out in accordance with the requirements of the GDPR."

The Agent states that this database is a file of its own ownership.

Likewise, as Data Controller, the Agent declares and ensures that he has filtered his database with advertising exclusion lists ("Robinson List") in his commercial action.

As Data Controller, the Agent must inform users in the commercial action about the data transfer that will be carried out and inform about who will be the service provider.

That is, at the moment the potential client accepts the commercial purpose of the call and gives consent for the contracting of the product, the Agent will then act as Data Processor for the collection and registration of the remaining personal data of the interested party."

(Note: the underlining has been added by the Agency)

- Regarding the request for a copy of the contract signed with XXXX or any other supporting document of the purchase of the file from which the personal data of the claimant has been obtained, BONTECU informs that:

"Z99M Digital Consulting, S.L. is a company that supplies databases with a temporary usage license. It is an entity dedicated to the marketing and promotion of its own Databases.

It is an Agent, DATA CONTROLLER, that makes databases available to BONTECU Distribuciones S.L., and temporarily transfers its usage license for the execution of telemarketing campaigns.

As reiterated on numerous occasions, the data obtained from the claimant is part of the files of B.B.B., with which an Agency contract is maintained.

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After reviewing the protocols established by the Company, in the call script that is established with the user, there is a statement where XXXX appears as Responsible.

This is due to an administrative error in that statement, which will be corrected.

In the call script of BONTECU Distribuciones S.L., there is a legal notice, which is used to verify the customer's consent to the supply contract, where it incorrectly states that the data file is the responsibility of XXXX, which is not true, an error that is not causing harm and will be corrected.

6.- On February 6, 2023, FACTOR is again requested to provide documentation proving the consent granted by the complainant to be contacted for commercial purposes on behalf of FACTOR prior to the call being made, and the completed Annex 7 of the contract between the entities BONTECU and FACTOR, that is, an annex that includes information about the legitimacy for the processing of the personal contact data file provided by BONTECU.

FACTOR sends its response letter on February 22, 2023, indicating that, after receiving the information request, it contacted ENCIENDE ENERGIA to provide the required information and/or documentation.

FACTOR reminds that the contract was made through BONTECU, which used its own databases (of BONTECU) to make the call "considering that ENCIENDE ENERGIA is not providing a service (such as telemarketing) for FACTOR ENERGIA, S.A. using the database of the latter but is conducting commercial activity with the aim of promoting sales in its capacity as an agent for FACTOR." And, "therefore, it is the agent company that, at the time of the call, is responsible for processing the complainant's data and not FACTOR."

FACTOR continues to explain again that FACTOR incorporated the complainant's personal data following the confirmation of the supply contract, with FACTOR becoming responsible for the processing at that moment.

It further informs that, at the time of sending this response letter to the request, it still does not have a response from ENCIENDE ENERGIA regarding the requested issues (having been informed that a response will be provided as soon as possible), and therefore requests an extension of the deadline.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Lawfulness of processing

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation with regard to processing under paragraph 1, letters c) and e), laying down more precise requirements for processing and other measures to ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for processing referred to in paragraph 1, letters c) and e), shall be established by:

- a) Union law, or
- b) the law of the Member States applicable to the controller.

The purpose of the processing shall be determined in that legal basis or, with regard to the processing referred to in paragraph 1, letter e), shall be necessary for the performance of a task carried out in the public interest or in the exercise of powers."

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public interests conferred to the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of the processing by the controller; the types of data subject to processing; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific processing situations under Chapter IX. The law of the Union or of the Member States shall fulfill a public interest objective and shall be proportionate to the legitimate aim pursued.

4. When the processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union or Member State law that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23(1), the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any relationship between the purposes for which the personal data were collected and the purposes

of the intended further processing;

b) the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;

c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;

d) the possible consequences for the data subjects of the intended further processing;

e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

III

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing."

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2. In evaluating the adequacy of the security level, particular attention shall be paid to the risks presented by the processing of data, especially as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law.

IV

Conclusion

The facts subject to the complaint are directed against "ECO IMPERIA ENERGIA (ENCIENDE ENERGÍA)" for having registered the complainant, an unsolicited registration, with an electricity company.

The complainant states that, after receiving a phone call in which they identified themselves as their supplying company, a contract change was made to the entity being complained about without their consent, with the respondent having all their personal data beforehand.

The incoming marketer is the entity FACTOR, with ENCIENDE ENERGÍA (a trade name of BONTECU) being the authorized sales agent who made the call.

During the preliminary investigation proceedings, the following evidence has been gathered that the complainant expressed their consent to formalize the contract subject to the complaint:

- The confirmation of the contract occurs through the response to an SMS with a YES, certified by a

trusted third party.

- The certificate of said SMS issued by the trusted third party has been provided. It has been verified that the certifier can indeed certify in that area and is registered for that purpose.
- It has been confirmed that the contract that can be downloaded from the link appearing in the SMS message (certified by the trusted third party) is the same document as that presented in the complaint.
- FACTOR has provided a copy of the recording of the call during which the contract was formalized. It is concluded that FACTOR has verified the consent granted by the complainant for the execution of the contract. The mechanisms for verifying that the contract has been properly formalized have been evaluated and are correct.

In summary, the incoming energy company demonstrates that it sent an SMS with the contract and a certified third party that responded to that email granting consent for the change of company.

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.

In accordance with the above, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to FACTOR ENERGÍA, S.A., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and 123 of the aforementioned LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Data Protection Agency

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